

OFFICE OF THE SECRETARY

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June 8, 2021

The Honorable Richard F. Toohey
Judge of the Superior Court
County of Orange
8141 13th Street
Westminster, CA 92683

Re: John Dominick Bergeron aka John Dominic Bergeron; John Domonick Bergeron; M. Irwin
CDCR No: F04597
Case No: 04WF1694
Date of Sentence: October 9, 2007

Dear Honorable Richard F. Toohey:

The purpose of this letter is to provide the court with the authority to resentence inmate John D. Bergeron, F04597 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Bergeron has received two Rules Violation Reports since being received to CDCR on November 30, 2005, but has remained disciplinary free since October of 2014. Inmate Bergeron is currently assigned as an Americans with Disabilities Act Worker/Semi-Skilled. Inmate Bergeron also participates in Victim Offender Education Group. Inmate Bergeron has received numerous certificates, and nine laudatory chronos from these group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups. Inmate Bergeron also received three letters of support from correctional staff, and five from group sponsors. Inmate Bergeron was offered an internship with Options Recovery

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Services as an Addiction Counselor and housing upon release. Various staff at San Quentin State Prison, including the Investigative Services Unit have been interviewed in regards to inmate Bergeron's current programming and behavior. Staff indicated inmate Bergeron is a programmer, has never caused any negative issues, and is always respectful to staff and inmates.

Having reviewed the enclosed documentation it appears that inmate Bergeron's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



KATHLEEN ALLISON
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable Erick L. Larsh, Presiding Judge
Orange County District Attorney's Office
Orange County Public Defender's Office